

ASSURED SHORTHOLD TENANCY AGREEMENT

To be used where the Deposit is registered with the
Tenancy Deposit Scheme (TDS) Insured Scheme



GUIDANCE NOTES FOR TENANTS

Welcome to your Assured Shorthold Tenancy Agreement produced by Propertymark. It is an important document as it will govern your relationship both with the Landlord of your new property and with the letting or managing Agent for the whole of the time that you are actually in residence. As such you should read the document through carefully and raise any queries with the Letting Agent who gave you this Agreement.

At the same time, please be aware that you have the right to seek independent advice if you wish either from your solicitor or other advice agency.

As well as this Agreement, you may be asked to sign the Check-In or Inventory which will list the Landlord's Fixtures and Fittings and the other items which the Landlord provides for your use during the Tenancy. You will also be given copies of the following documents, receipt of which is acknowledged on the final page of the Agreement itself:

- 'How to Rent' guide produced by HM Government
- Energy Performance Certificate (EPC) for your property
- A current Gas Safety Certificate for your property – if there is a gas supply
- Details of the scheme with which your Deposit will be registered, including details as to how you will recover your Deposit on your departure
- A check-list of the key Deposit registration information generally described as "Prescribed Information"

If any of these documents are missing when you come to sign your Tenancy Agreement, please speak with your Letting Agent as these documents are just as important as the Agreement itself.

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SUMMARY OF AGREEMENT

Landlord(s)	Bryan Findlay C/o 1stavenue.co.uk Ltd, Unit 6, 128 Metcalfe Court, London, SE10 0EL
Tenant(s)	Oliver Mark Cristian Yerbury-Hodgson of Flat 1A, Burnham Thorpe Court, 68-74 Nelson Street, London, E1 2DY
Premises	2a Greenwich South Street, London, SE10 8TY
Rent	£1,325.00 per month
Rent Due Date	1st
Deposit	£1528.85
Commencement Date	1 st of November 2019
Expiry Date	31 st of October 2021 and thereafter from month to month
Break Clause	Landlord Break Clause: No less than 2 months notice served after completion of the first 12 months of the Tenancy. For avoidance of doubt the Tenancy may not be terminated by the Landlord prior to the 31 st of December 2020 Tenant Break Clause: No less than 2 months notice served after completion of the first 12 months of the Tenancy. For the avoidance of doubt the Tenancy may not be terminated by the Tenant prior to the 31 st of December 2020

DEFINITIONS

Act of Parliament	Any reference to any 'Act of Parliament' includes a reference to amended or replacement legislation and to subordinate legislation made under such Acts of Parliament.
The Agreement	References to 'Agreement' or 'the Agreement' are to this Tenancy Agreement.
The Check-In Inventory and Schedule of Condition	'The Check-In Inventory and Schedule of Condition' or 'Inventory' means the document drawn up prior to the commencement of the Tenancy by the Landlord, the Landlord's Agent or an inventory clerk.
Deposit	'The Deposit' means any single amount of money paid by the Tenant or a third party to the Landlord or to the Agent under the Tenancy as security against the performance of the Tenant's obligations under the Tenancy, the discharge of any liabilities, any damage to the Premises and/or non-payment of rent during the Tenancy.
The Deposit Holder	'The Deposit Holder' as mentioned in the Prescribed Information pages attached to this Agreement, is the person, firm, or company who holds the Deposit and is a member of the Tenancy Deposit Scheme ('TDS Insured') operated by The Dispute Service (TDS) —one of the organisations authorised to register Deposits under the Housing Act 2004.
TDS	'TDS' means the Tenancy Deposit Scheme operated by The Dispute Service Ltd as detailed in the Prescribed Information attached to this Agreement.
Fixtures and Fittings	References to the 'Fixtures and Fittings' mean any of the Landlord's contents, including all items contained in the Inventory and signed on behalf of the parties at the commencement of the Agreement or any items replacing them, including reference to any of the fixtures, fittings, furnishings or effects, floor, ceiling and wall coverings.
Guarantor	Any person(s) who has agreed to meet all of the Tenant's responsibilities under the Agreement in the event the Tenant defaults on any of their obligations under this Agreement.
Insurable Risks	'Insurable Risks' means fire, storm, tempest and such other perils that are included in the Landlord's insurance policy if affected.

Joint and Several	Where the Tenant is more than one person the Tenant's covenants are joint and several. The expression 'Joint and Several' means that jointly the Tenants are responsible for the payment of all rent and all liabilities falling upon the Tenants during the Tenancy or any extension of it. Individually each Tenant is also responsible for payment of all rent and all liabilities falling upon the Tenants as well as any breach of the Agreement.
Landlord	The expression 'Landlord' shall include anyone lawfully entitled to the Premises upon the termination of the Tenancy.
The Landlord's Agent / Agent	"The Landlord's Agent" or "Agent" means 1stavenue.co.uk Ltd of Unit 6, 128 Metcalfe Court, London, SE10 0EL
Permitted Occupier	'Permitted Occupier', if used in the Agreement, includes any person who is licensed by the Landlord to reside at the Premises and who will be bound by all the terms of this Agreement apart from the payment of rent.
The Premises	References to 'the Premises' include reference to any part or parts of the Premises and the curtilage of the same, together with the garden, garage and parking space (if applicable) but excluding <i>Please see additional clause(s) for more details</i>
Relevant Persons	'Relevant Persons' mentioned in the Prescribed Information pages attached to this Agreement means any other person or company paying the Deposit on behalf of the Tenant, e.g. a local authority, parent, or Guarantor. Relevant Persons will be given details of the scheme with which the Deposit will be registered.
Stakeholder	Where the Deposit is held as "Stakeholder" no deductions can be made from the Deposit without consent, preferably in writing, from both parties, or from the court, or an adjudication decision from TDS.
The Tenant	'The Tenant' includes anyone to whom the Tenancy has been lawfully transferred.
The Term / the Tenancy	References to 'the Term' or 'the Tenancy' include any extension or continuation of the Agreement or any periodic Tenancy which may arise following the expiry or determination of the period of the Term specified in clause 2.
Water Charges	References in this Agreement to 'Water Charges' include references to sewerage and environmental service charges. The masculine gender includes the feminine gender and any reference to the singular includes a reference to the plural and vice versa.

ASSURED SHORTHOLD TENANCY AGREEMENT

This Agreement is made on 2nd day of November 2019

Between:

Bryan Findlay

C/o 1stavenue.co.uk Ltd, Unit 6, 128 Metcalfe Court, London, SE10 0EL

"The Landlord"; and

Oliver Mark Cristian Yerbury-Hodgson of Flat 1A, Burnham Thorpe Court, 68-74 Nelson Street, London, E1 2DY

"The Tenant"; and

IT IS AGREED AS FOLLOWS

1. The Landlord lets to the Tenant the residential premises known as: 2a Greenwich South Street, London, SE10 8TY
("the Premises")
2. The Tenancy shall be from and including the 1st day of November 2019 ("the Commencement Date") to and including the 31st day of October 2021 and thereafter from month to month and until terminated by either party serving a notice on the other in accordance with this Agreement
("the Expiration Date"), "the Term".
3. The Tenant shall pay rent to the Landlord's Agent by Bank Standing Order to 1stavenue.co.uk Ltd Account number: 40593338 Sort Code: 201433 in the name of 1st Avenue exclusive of Council Tax, Water, Gas, Electricity, Telephone, Broadband, Satellite Television, Cable Television and TV Licence.

The first month's rent in the sum of £1,325.00 shall be payable in advance on or before the 1st November 2019. Thereafter rent will be payable in advance at a rate of £1,325.00 per month.

Full details can be found in the Payment Schedule attached to this document.

4. This Agreement is intended to create an Assured Shorthold Tenancy as defined by Section 19A of the Housing Act 1988 as amended and shall take effect subject to the provisions for recovery of possession provided for by virtue of Section 21 of that Act.
5. Where the Tenancy shall include the Landlord's Fixtures and Fittings ("the Fixtures and Fittings") in the Premises this includes, amongst other things, all matters specified in the Inventory and Schedule of Condition ("the Check-In Inventory and Schedule of Condition").
6. In the event of a default by the Tenant(s) of any of their obligations or responsibilities under the Agreement, the Guarantor(s) (if any) shall become immediately liable to remedy said default. In the event of multiple Guarantors, each shall be Joint and Severally liable.

7. DEPOSIT

- 7.1. The sum of £1528.85 shall be paid by Tenants to the Landlord/Agent upon the signing of this Agreement by way of a security Deposit ("the Deposit").
- 7.2. Upon the Tenant vacating the Premises and after deduction of all agreed or authorised deductions, the balance of the Deposit shall be refunded to the person or persons outlined at clause 7.1 above.

7.2.1. The Deposit will be held by the Agent as Stakeholder. The Agent is a member of The Tenancy Deposit Scheme ("TDS Insured") operated by The Dispute Service ("TDS").

7.3. The Landlord's Agent will protect the Deposit within 30 days of the commencement of the Tenancy or receipt of the Deposit, whichever is earlier, and give to the Tenant and to any Relevant Person a copy of the Prescribed Information together with details of the scheme applicable to the registration of the Deposit.

7.4. Any interest earned on the holding of the Deposit will belong to "the Agent".

7.5. The Deposit has been taken for the following purposes:

7.5.1. Any fees or other monies that the Agent is entitled to recover from the Tenant pursuant to the Agreement.

7.5.2. Any rent or other money due or payable by the Tenant under the Tenancy of which the Tenant has been made aware and which remains unpaid after the end of the Tenancy. This will include a fee which any Agent is entitled to recover from the Tenant.

7.5.3. Any damage, or compensation for damage, to the Premises, its Fixtures and Fittings, or for missing items for which the Tenant may be liable, subject to an apportionment or allowance for fair wear and tear, the age and condition of each, and any such item at the commencement of the Tenancy, insured risks and repairs that are the responsibility of the Landlord.

7.5.4. The reasonable costs incurred in compensating the Landlord for, or for rectifying or remedying any major breach by the Tenant of the Tenant's obligations under the Agreement, including those relating to the cleaning of the Premises and its Fixtures and Fittings, and contents.

7.5.5. Any unpaid accounts for utilities or water charges or environmental services or other similar services or Council Tax incurred at the Premises for which the Tenant is liable.

Note: Adjudicators will consider claims against the Deposit in the order set out in the Tenancy Agreement.

7.6. Protection of the Deposit:

Tenancy Deposit Scheme
The Dispute Service Ltd 1 The Progression Centre 42 Mark Road
Hemel Hempstead
Hertfordshire
HP2 7DW

Phone: 0300 037 1000

Email: deposits@tenancydepositscheme.com

Website: www.tenancydepositscheme.com

7.7. At the end of the Tenancy

7.7.1. The Landlord/Agent must tell the Tenant within ten working days of the end of the Tenancy if they propose to make any deductions from the Deposit

7.7.2. If there is no dispute the Landlord/Agent will keep or repay the Deposit, according to the agreed deductions and the conditions of the Agreement, Payment of the Deposit or any balance of it will be made within ten working days of the Landlord and the Tenant agreeing the allocation of the Deposit.

7.7.3. In the event of multiple Tenants comprising the Tenant, each of them agrees with the other(s) that any one of them may consent on behalf of all the others to use alternative dispute resolution through the TDS to deal with any dispute about the Deposit at the end of the Tenancy.

7.7.4. If, after ten working days following notification of a dispute to the Landlord/Agent and reasonable attempts having been made in that time to resolve any differences of opinion, there remains an unresolved dispute between the Landlord and the Tenant over the allocation of the Deposit the dispute will (subject to 7.7.5 below) be submitted to the TDS for adjudication. All parties agree to co-operate with the adjudication process.

7.7.5 The rights of the Landlord, the Agent and of the Tenant to take legal action through the County Court remain unaffected by clause 7.7.4 above

7.8. If there is a change of Landlord during the Tenancy, the Tenant shall consent to the transfer of the amount of the Deposit (or the balance of it) to the purchaser or transferee of the Premises at which point the Landlord shall be released from any further claim or liability in respect of the Deposit or any part of it, recognising that the Deposit is protected and will continue to be protected by The TDS.

7.9. The Landlord shall not be obliged to refund the Deposit or any part of the Deposit on any change in the person or persons who for the time being comprise "the Tenant".

7.10. Where more than one person is comprised for the time being in the expression "the Tenant" the Deposit may be repaid to any one Tenant and this repayment shall discharge the Landlord from any further liability in respect of the amount so repaid.

7.11. Any goods or personal effects belonging to the Tenant or members of the Tenant's household which shall not have been removed from the Premises within 14 days after the expiry or sooner, termination of the Tenancy created by this Agreement shall be deemed to have been abandoned, provided that the Landlord shall have used his reasonable endeavours to give written notice of the same to the Tenant. In such circumstances the Landlord shall be entitled to dispose of such abandoned goods or personal effects as he shall see fit. The Tenant shall in any event indemnify the Landlord for any costs incurred by the Landlord in connection with the removal, storage or sale of such items.

7.11.1. The Tenant shall pay by way of damages to the Landlord any additional expenses which the Landlord shall have reasonably incurred in checking the Inventory and Schedule of Condition if the same could not reasonably be finalised until any goods or personal effects belonging to the Tenant have been removed from the Premises.

8. THE TENANT AGREES WITH THE LANDLORD AS FOLLOWS:

8.1. Rent

8.1.1. To pay rent according to the terms of this Agreement whether formally demanded or not in accordance with clause 3.

8.1.2. The Tenant shall pay to the Landlord interest at the rate of 3% per annum above the Bank of England base rate from time to time on any rent or other money payable under this Agreement remaining unpaid for more than 14 days after the day on which it became due.

8.2. Conditions of Premises, repair and cleaning

8.2.1. To keep the interior of the Premises including any fixtures and fittings in good repair and condition throughout the Term (excepting only those installations which the Landlord is liable to repair under section 11 of the Landlord and Tenant Act 1985) and also to keep the interior of the Premises in good decorative order and condition throughout the Term (damage by fire excepted unless the same show result from any acts all admission on the part of the Tenant or any person residing or sleeping in or visiting the Premises).

8.2.2. To use the Premises in a Tenant-like manner and to take reasonable care of the Premises including any Fixtures and Fittings and to keep the Premises and any fixtures and fittings in a clean and tidy condition throughout the Term. To deliver up the Premises with vacant possession and the Fixtures and Fittings at the determination of Term in the same condition and order as at the commencement of the Term and in accordance with the Tenant's obligations and to deliver all keys to the Premises to the Landlord/Landlord's Agent.

8.2.3. To make good all damages, breakages, and losses to the Premises and its contents that may occur during the Term caused by the act or omission of the Tenant or any person who is residing or sleeping in or visiting the Premises (with the exception of fair wear and tear).

- 8.2.4. To keep all the electric lights in good working order and in particular to replace all fuses, bulbs and fluorescent tubes as and when necessary.
- 8.2.5. To replace all broken glass in the Premises promptly with the same quality glass, where the Tenant or any person who is residing or sleeping in or visiting the Premises causes the breakage.
- 8.2.6. To notify the Landlord promptly, and preferably in writing, as soon as any repairs and other matters falling within the Landlord's obligations to repair the Premises or the fixtures and fittings come to the notice of the Tenant.
- 8.2.7. Upon the Landlord or the Landlord's Agent giving the Tenant written notice requiring the Tenant to carry out any repairs or other works for which the Tenant is responsible under this Agreement, to carry out the same within a reasonable time.
- 8.2.8. To keep the window(s) of the Premises clean.
- 8.2.9. To wash and clean all items that may have become soiled during the Term.
- 8.2.10. To take all appropriate precautions to ensure adequate ventilation to the Premises.
- 8.2.11. (If applicable) to pay for the emptying of the septic tank or cess pit throughout the Tenancy and at the end of the Tenancy provided it has been emptied prior to the start of the Tenancy and proof has been provided by a copy of an invoice from the service provider.
- 8.2.12. (If applicable) to pay to have the oil tanks filled throughout the Tenancy and at the end of the Tenancy provided they were all filled prior to the start of the Tenancy and proof has been provided by a copy of an invoice from the service provider.
- 8.2.13. (If applicable) to leave the oil tank filled to the same level at the end of the Tenancy as at the commencement.
- 8.2.14. (if applicable) to pay to have the oil system and boiler bled if the Tenant allows the oil supply to run out.
- 8.2.15. To clean and disinfect any and all showerheads in the Premises every six months.

8.3. Access and Inspection

- 8.3.1. To permit the Landlord or any superior Landlord, or the Landlord's Agent or contractors or those authorised by the Landlord, upon giving at least 24 hours' notice in writing (except in an emergency) to enter the Premises at all reasonable times for the purposes of inspection and repair, to include inspection and repair to any adjoining or neighbouring Premises.
- 8.3.2. To permit the Premises to be viewed during the last two months of the Term at all reasonable times upon previous appointment during normal working hours made by any persons who is or is acting on behalf of a prospective purchaser or Tenant of the Premises who is authorised by the Landlord or the Landlord's Agent to view the Premises and to erect "For Sale" or "To Let" boards at their discretion.
- 8.3.3. To indemnify the Landlord for any loss incurred by the Landlord as a result of the Tenant failing to keep a previously agreed appointment with any third party at the Premises.

8.4. Insurance

- 8.4.1. Not to do anything which might cause the Landlord's policy of insurance on the Premises or on the Fixtures and Fittings, to become void or voidable or causes the rate of premium on any such policy to be increased. The Tenant will indemnify the Landlord for any sums from time to time paid by way of increased premium and all reasonable expenses incurred by the Landlord in or about any renewal of such policy rendered necessary by a breach of this provision. The Tenant's belongings within the Premises are his and are not covered by any insurance policy maintained by the Landlord.
- 8.4.2. The Tenant will promptly notify the Landlord or the Landlord's Agent of any defect to the Premises, for example in the event of loss or damage by fire, theft or other causes (whether or not caused by the act, default or neglect of the Tenant) of which he becomes aware.
- 8.4.3. The Tenant is strongly advised to take out insurance with a reputable insurer for the Tenant's possessions as such possessions will not be covered by any insurance effected by the Landlord.

8.5. Assignment, Novation and Surrender

- 8.5.1. Not to assign, underlet (or) part with or share the possession of the Premises and not to permit any persons other than the person named as the Tenant or any other person approved of in writing by the Landlord to occupy or reside in the Premises without the Landlord's written consent, such consent not to be unreasonably withheld. Not to take in lodgers or paying guests without the Landlord's written consent, such consent not to be unreasonably withheld. Where such consent is given the Tenant will pay to the Agent a fee to amend this Agreement in accordance with the Agent's published scale of fees.

8.6. Illegal, immoral usage

- 8.6.1. Not to use the Premises for any illegal, immoral or improper use.
- 8.6.2. Not to use or consume in or about the Premises during the continuance of this Tenancy any drugs mentioned in the Misuse of Drugs Act 1971 or any other controlled substance, the use of which may from this time on be prohibited or restricted by statute.

8.7. Inflammable substances and equipment

- 8.7.1. Not to keep any dangerous or inflammable goods, materials, or substances in or on the Premises apart from the required for general household use.

8.8. Nuisance and noise

- 8.8.1. Not to use the Premises or allow others to use the Premises in a way which causes a nuisance, annoyance, or damage to neighbouring, adjoining or adjacent Premises, or to the owners or occupiers of them. This includes any nuisance caused by noise.

8.9. Utilities

- 8.9.1. Not to tamper or interfere with or alter or add to the gas, water or electrical installations or meters in or serving the Premises.
- 8.9.2. To pay all charges in respect of gas, water and electricity consumed on the Premises over the supply of Internet services and all charges in respect of any telephone installed on the Premises and the television licence fee. Charges falling due partly during and partly before or after the tenancy will be apportioned.
- 8.9.3. To notify each supplier of gas, electricity, water, telephone and Internet services immediately that the Tenancy has commenced by completing an application for a supply to the Premises in the name of the Tenant and not in the name of the Landlord.
- 8.9.4. The Tenant shall not have a key meter installed at the Premises or any other meter which is operational by the insertion of coins or a pre-paid card or key without the Landlord's prior written consent, such consent not to be unreasonably withheld. If the Tenant changes the supplier of the utilities then he must provide the name and address of the new supplier to the Landlord or his Agent immediately and ensure that the account is returned to the original supplier at the termination of the Tenancy. To indemnify the Landlord for any costs reasonably incurred by the Landlord in reinstating the facilities for the supply of utilities commensurate with the facilities that exist as at the Commencement Date.
- 8.9.5. In the event of any supply of water, gas, electricity, telephone or internet services to the Premises being disconnected in consequence of the non-payment by the Tenant of the whole or any part of the charge relating to the same or as a result of any other act or omission on the part of the Tenant, then the Tenant shall indemnify the Landlord for any costs associated with reconnecting or resuming those services.
- 8.9.6. Not to change the telephone number at the Premises without the prior written consent of the Landlord, such consent not to be unreasonably withheld, or to procure the transfer of the telephone number to any other address.
- 8.9.7. At the start of the lease gas and electricity will be provided or will be in the process of being provided by OVO Gas Ltd and OVO Electricity Ltd ("OVO Energy"). However, this will not prevent the Tenant from changing to a different energy provider if desired.

- 8.9.8. The Tenant agrees that the letting agent may pass the Tenant's name and contact details to OVO Energy for the purposes of:
- (a) registering the gas and electricity meters at the property in the Tenant's name with OVO Energy, providing gas and electricity to the Tenant and administering the Tenant's account with OVO Energy;
 - (b) registering the Tenant with the relevant local authority for the payment of council tax; and
 - (c) registering the Tenant with the incumbent water supplier to the property. The water supplier may contact the Tenant in order to provide further information about its services and products and conclude an agreement with the Tenant for those services and products.
- 8.9.9. OVO Energy will use the Tenant's name and contact details to fulfil the Tenant's contract with OVO Energy and only for the purposes set out above. OVO Energy will comply with its obligations as a data controller in the Data Protection Act 1998, the General Data Protection Regulation ((EU) 2016/679) and any other data protection legislation which is enacted in the UK and will handle Tenant's data in the manner set out in OVO Energy's standard terms and conditions and/or privacy policy. OVO Energy will not share the Tenant's details with any third party other than the relevant local authority and incumbent water supplier and will hold the Tenant's details for the duration of the contract. From 25 May 2018, the Tenant is reminded of their rights under the General Data Protection Regulation to access, rectification, erasure, restriction of processing, and portability of their data.
- 8.9.10. If the Tenant is dissatisfied with the manner in which OVO Energy handles their details they may lodge a complaint with the Information Commissioner's Office. If the Tenant has any questions regarding the details or use of the Tenant's data held by OVO Energy, the Tenant may contact OVO Energy at 1 Rivergate, Temple Quay, Bristol BS1 6ED or by e-mail to hello@ovoenergy.com

8.10. Animals and pets

- 8.10.1. Not to keep any domestic animals or birds in the Premises without the prior written consent of the Landlord, such consent not to be unreasonably withheld, delayed, or withdrawn. At the end of the Tenancy, the Tenant agrees to have the Premises cleaned to a standard commensurate with the condition of the property at the commencement of the Tenancy.
- 8.10.2. Where such consent is given the Tenant will pay to the Agent a fee to amend this Agreement in accordance with the Agent's published scale of fees.
- 8.10.3. In granting a pet clause which is not to be unreasonably withheld, it is agreed that the monthly rent as noted on the payment schedule will increase between a minimum of 5% and a maximum of 8%. The landlord is entitled to refuse to agree to the variation unless the tenant agrees to pay the higher rent.

8.11. Usage

- 8.11.1 To use the Premises for the purpose of a private residence only in the occupation of the Tenant and not for business purposes.

8.12. Locks

- 8.12.1. Not to install or change any locks in the Premises and not to procure the cutting of additional keys for the locks previously installed without the Landlord's prior written consent, such consent not to be unreasonably withheld.
- 8.12.2. If, in breach of this Agreement, any additional keys are made the Tenant shall provide these to the Landlord together with all remaining original keys at the expiration or sooner termination of the Tenancy and in the event that any keys have been lost, pay to the Agent such charges as set out in the Agents published scale of fees.
- 8.12.3. If any lock is installed or changed in the Premises without the Landlord's prior written consent, then to remove that lock if required by the Landlord and to make good any resulting damage.
- 8.12.4 Where due to any act or default by the Tenant it is reasonable for the Landlord to replace or change the locks in the Premises, the Tenant shall indemnify the Landlord for any reasonable costs that may be incurred.

8.13. Fixtures and Fittings

- 8.13.1. Not to remove any of the Fixtures and Fittings from the Premises to store the same in the loft, basement or garage (if any) without obtaining the Landlord's prior written consent, such consent not to be unreasonably withheld, and then to ensure that any such items are stored safely and upon vacating the Premises, to leave the same in the places in which they were on the Commencement Date.
- 8.13.2. Not to remove the Fixtures and Fittings as specified in the Inventory and Schedule of Condition or any part of them or any substitute Fixtures and Fittings from the Premises and not to bring onto the Premises the Tenant's own equipment or effects without the prior written consent of the Landlord, such consent not to be unreasonably withheld.

8.14. Alterations and Redecoration

- 8.14.1. Not to decorate or to make any alterations in or additions to the Premises and not to cut, maim, puncture or injure any of the walls, partitions or timbers of the Premises without the Landlord's prior written consent, such consent not to be unreasonably withheld. Where such consent is given the Tenant will pay to the Agent a fee to amend this Agreement in accordance with the Agent's published scale of fees.
- 8.14.2. Not to permit any waste, spoil or destruction to the Premises.

8.15. Empty Premises

- 8.15.1. Before leaving the Premises vacant for any continuous period of 28 days or more during the Term, to provide the Landlord or the Landlord's Agent with reasonable notice and to take reasonable precautions to prevent freezing.
- 8.15.2. To ensure that at all times when the Premises are vacant, all external doors and windows are properly locked or are otherwise properly secured and that any alarm is activated and that any control number is not changed without the consent of the Landlord, such consent not to be unreasonably withheld.
- 8.15.3. If the Premises are vacant for a period of over two weeks, the Tenants should allow the water to run from all outlets in the Premises for one minute before consuming or otherwise using the water.

8.16. Drains

- 8.16.1. Not to overload, block up or damage any of the drains, pipes, wires, cables or any apparatus or installations relating to the services serving the Premises.
- 8.16.2. Not to permit oil, grease or other harmful or corrosive substances to enter any of the sanitary appliances or drains within the Premises.
- 8.16.3. To clear any stoppages or blockages when any occur in any of the drains, gutters, downpipes, sinks, toilets or waste pipes and ventilation ducts which serve the Premises, if they are caused by the Tenant's negligence and/or misuses.
- 8.16.4. You should proactively seek value for money in respect of works undertaken

8.17. Affixation of items

- 8.17.1. Not to place or exhibit any aerial, satellite dish, notice, advertisement, sign or board on the exterior of the Premises or in the interior of the same without first obtaining the Landlord's written consent, such consent not to be unreasonably withheld, and where such consent is granted, to meet all costs of installation, removal and thereafter make good any resultant damage.
- 8.17.2. Not to affix any items to the walls of the Premises either internally or externally using glue, nails picture hooks or sticky tape without the Landlord's prior written consent, such consent not to be unreasonably withheld.

8.18. Washing

- 8.18.1. Not to hang any washing, clothes or other articles outside the Premises or otherwise than in such place as the Landlord may designate or permit and not to hang or place wet or damp articles of washing upon any item or room heater.

8.19. Costs and charges

- 8.19.1. To protect the Landlord from loss arising from any claim as a consequence of any breach by the Tenant of any covenant contained in the agreement.
- 8.19.2. To indemnify the Landlord in respect of any legal costs and expenses (including VAT) properly incurred in enforcing this Agreement or any part thereof and which arises from a breach of its terms by the Tenant.
- 8.19.3. To indemnify the Landlord for any loss incurred by the Landlord or his Agent resulting from the dishonouring of any cheque issued by the Tenant or by a third party on the Tenant's behalf or for any loss arising from the cancellation or non completion of a standing order payment by the Tenant or the Tenant's bankers.

8.20. Refuse

- 8.20.1. To remove all rubbish from the Premises and to place the same within the dustbin or receptacles provided and in the case of any dustbins to ensure that all rubbish is placed and kept inside a plastic bin liner before placing in such dustbin.

8.21. Smoking

- 8.21.1. Not to smoke or permit any guest or visitor to smoke tobacco or any other substance in the Premises, without the Landlord's prior written consent which shall not be unreasonably withheld.

8.22. Garden

- 8.22.1. To keep the garden in the same character, weed free and in good order and to cut the grass at reasonable intervals during the growing season.

8.23. Inventory and check-out

- 8.23.1. The Tenant shall indemnify the Landlord or Landlord's Agent for any loss arising from the failure of the Tenant to keep a mutually agreed appointment to complete the check out procedures at the termination or sooner ending of the Tenancy which, for the avoidance of doubt, shall include indemnifying the Landlord or Landlord's Agent for any costs incurred in arranging a second check-out appointment. If the Tenant does not keep the second appointment, any assessment made by the Landlord or the Landlord's Agent shall be final and binding on the Tenant. Should the Landlord or his Agent fail to attend such appointment, the Tenant's reasonable costs incurred in attending the Premises will be met by the Landlord.
- 8.23.2. To clean to a good standard, or pay for the professional cleaning of the Premises and Fixtures and Fittings at the end of the tenancy, to the same standard to which the Premises and Fixtures and Fittings were cleaned prior to the start of the tenancy, as stated in the check in report of the inventory and schedule of condition and/or supporting documents
- 8.23.3. To arrange for the reading of the gas, electricity and water meter, if applicable, at the end of the Tenancy and the departure of the Tenant from the Premises.
- 8.23.4. To permit the Landlord or the Agent at the termination or earlier ending of the Tenancy to give the forwarding address of the Tenant to the suppliers of the service providers and to the local authority.
- 8.23.5. To return all keys, including any additional keys, remote controls, parking permits or security devices to the Landlord or the Agent at the end of the Tenancy (whether before or after the Term of this Agreement).
- 8.23.6. To pay for the cost of replacement remote controls or other security devices that have been lost or not returned at the end of the Tenancy.
- 8.23.7. To pay for the cost of replacement locks and keys if any keys have been lost or not returned at the end of the Tenancy.
- 8.23.8. To remove or pay for the removal of all refuse and rubbish belonging to the Tenant at the end of the Tenancy and dispose of it in the receptacle provided or arrange and pay for its disposal by the local authority at the end of the Tenancy.

- 8.23.9. To remove all belongings, personal effects, foodstuffs or equipment of the Tenant from the Premises at the end of the Tenancy.
- 8.23.10. To vacate the Premises within normal office hours at a time agreed with the Landlord or the Agent.
- 8.23.11. To provide a forwarding address to the Landlord or the Agent by the last day of the Tenancy.
- 8.23.12. To provide a copy of the final account for the water rates including sewerage and environmental services to the Landlord or the Agent together with proof of payment.
- 8.23.13. To pay all reasonable removal and/or storage charges, when items are left in the Premises which must be removed and stored by the Landlord for a maximum of fourteen days. If the items are not collected within fourteen days of the Tenant being notified the Landlord may sell or dispose of the items and the Tenant will be liable for all reasonable costs of sale; the costs of which may be deducted from any sale proceeds or the Deposit. If there are any remaining costs after the above deductions have been made, they will remain the liability of the Tenant.

8.24. Notices

- 8.24.1. To promptly forward to the Landlord or his Agent any notice of a legal nature delivered to the Premises touching or affecting the Premises, its boundaries or neighbouring properties as well as any correspondence.

8.25. Headlease

- 8.25.1. If applicable to observe all of the non-financial covenants on the part of the Landlord (as lessee under the headlease) as set out in the headlease of the Premises a copy of which has been provided to the Tenant prior to the date of this Tenancy.

8.26. Smoke alarms

- 8.26.1. To keep all smoke alarms and Carbon Monoxide detectors in good working order and in particular to replace all batteries as and when necessary and to check the alarms and Carbon Monoxide detectors monthly to ensure that they work.
- 8.26.2. The Tenant shall not burn any solid fuel in the Premises without prior, written consent of the Landlord, such consent not to be unreasonably withheld.

8.27. Burglar alarms

- 8.27.1. To set the burglar alarm at the Premises (if any) when the Premises are vacant and at night.
- 8.27.2. To notify the Landlord or the Agent of any new burglar alarm code immediately and to confirm that notification in writing.
- 8.27.3. To indemnify the Landlord for any costs that maybe incurred by the Landlord arising from the misuse of the burglar alarm by the Tenant, his family or visitors.

8.28. Immigration act

- 8.28.1. If the Tenant has a time limited Right to Rent in the United Kingdom as defined by the Immigration Act 2014, the Tenant shall, upon receipt of any communication touching or concerning their residency status in the United Kingdom from a relevant government department or body, advise the Landlord or his Agent of such and shall provide to them upon request copies of any such written communication.

9. THE LANDLORD AGREES WITH THE TENANT AS FOLLOWS:

9.1. Quiet enjoyment

- 9.1.1. That the Tenant paying the rent and performing and observing the obligations on the Tenant's part contained in this agreement shall peaceably hold and enjoy the Premises during the Term without any unlawful interruption by the Landlord or any person rightfully claiming under, through or in trust for the Landlord.

9.2. Insurance

- 9.2.1. To insure the Premises and the fixtures and fittings specified in the check-in inventory and Schedule of Condition to their full value with the reputable insurance company normally covered by a householder's comprehensive policy.

9.3. Interest and consents

- 9.3.1. That he is the sole/joint owner of the leasehold or freehold interest in the Premises and that all consents necessary to enable him to enter this agreement (whether from superior Landlords, mortgagees, insurers or other) have been obtained.

9.4. Repair

- 9.4.1. To keep in repair and proper working order all the mechanical and electrical items including all the washing machines, dishwashers and other similar mechanical or electrical appliances belonging to the Landlord as are included in the Check-in inventory provided that this Agreement shall not be construed as requiring the Landlord to carry out any works for which the Tenant is liable by virtue of his duty to use the Premises and the equipment and effects in a Tenant-like manner.
- 9.4.2. To repay the tenant any reasonable costs incurred by the Tenant to remedy the failure of the landlord to comply with his statutory obligations in line with sections 11 to 16 of the Landlord and Tenant Act 1988

9.5. Safety regulations

- 9.5.1. The furniture and equipment within the Premises complies with the Furniture and Furnishings (Fire Safety) Regulations 1988 as amended in 1993.
- 9.5.2. The gas appliances comply with the Gas Safety (Installation and Use) Regulations 1998 and that a copy of the Safety Check Certificate will be given to the Tenant when signing this Agreement.
- 9.5.3. The electrical appliances at the Premises comply with the Electrical Equipment (Safety) Regulations 1994.
- 9.5.4. The Premises are compliant with The Smoke and Carbon Monoxide Alarm (England) Regulations 2015 at the start of the Tenancy.

9.6. Legionella

- 9.6.1. The Landlord is responsible for ensuring that the Premises are compliant with Health and Safety Executive form ACOP L8 'The Control of Legionella Bacteria in Water Systems' at the start of and throughout, the Tenancy. This is done via the Landlord properly undertaking a Legionella risk assessment and, if necessary making any required changes to the water system of the Premises.

10. IT IS MUTUALLY AGREED AS FOLLOWS:

- 10.1. Any agreement or obligation on the part of the Tenant (howsoever expressed) to do or not to do any particular act or thing shall also be constructed as an obligation on the part of the Tenant not to permit or allow the same act on the part of any other person(s).

10.2. Rent review

- 10.2.1. It is agreed that the rent as defined in this Agreement will be reviewed in an upwards only fashion on the anniversary of this Tenancy and upon each subsequent anniversary in line with the Retail Price Index (RPI) increases for the previous 12 months and subject to a minimum of 3% and a maximum of 7.5%.

10.3. Repair

- 10.3.1. Sections 11–16 of the Landlord and Tenant Act 1985 (as amended by the Housing Act 1988) apply to this Agreement. These require the Landlord to keep in repair the structure and exterior of the Premises (including drains, gutters, and pipes) and keep in repair and proper working order the installations in the Premises for the supply of water, gas, electricity, sanitation, and for space and water heating. The Landlord will not accept responsibility for charges incurred by the Tenant that might otherwise be the Landlord's responsibility, except in the case of an emergency.

- 10.3.2. The Landlord shall take all reasonable steps to ensure that the Premises shall comply with the Homes (Fitness for Human Habitation) Act 2018.
- 10.3.3. The tenant in the event of an emergency should proactively seek value for money in respect of works undertaken
- 10.3.4. Wherever possible, the tenant is encouraged to resolve issues independently rather than be subject to a default fee or damages payment.

10.4. Reimbursement

- 10.4.1. Where the Landlord is entitled to do anything at the cost or expense of the Tenant and thereby incurs a loss, then the Tenant shall pay by way of damages the loss so suffered by the Landlord promptly and when requested so to do failing which the Landlord may treat his loss as a deductible sum from the Deposit in accordance with clause 6.5 hereof at the end of the Tenancy.

10.5. Data protection and confidentiality

- 10.5.1. The Tenant's personal data, which will be processed in the execution of this Agreement will be handled in accordance with the General Data Protection Regulation (EU) 2016/679. Further details regarding this processing activity is set out in the associated privacy notice, which can be found at 1stavenue.co.uk.

10.6. Council tax

- 10.6.1. The Tenant shall pay the Council Tax in respect of the Premises provided always that in the event of the Landlord paying such tax, whether under a legal obligation or otherwise, the Tenant shall repay the same to the Landlord upon demand or a fair and reasonable proportion of it.

10.7. Forfeiture

- 10.7.1. If at any time the rent or any part of the rent shall remain unpaid for 14 days after becoming payable (whether formally or legally demanded or not); or if any agreement or obligation on the Tenant's part shall not be performed or observed; or if the Tenant shall become bankrupt or enter into a Voluntary Arrangement with his Creditors; or if any of the grounds listed in Schedule 2 of the Housing Act 1988 as amended by the Housing Act 1996 apply, being Ground 2, 7A, 8, 10, 11, 12, 13, 14, 15 or 17; then the Landlord may re-enter upon the Premises provided he has complied with his statutory obligations and has obtained a court order and at that time the Tenancy shall end, but the Landlord retains the right to take action against the Tenant in respect of any breach of the Tenant's agreements and obligations contained in the Tenancy.

10.8. Interruptions to the tenancy

- 10.8.1. If the Premises are destroyed or made uninhabitable by fire or any other insured risk, Rent will cease to be payable until the Premises are reinstated, unless the insurance monies are not recoverable because of any act or omission by the Tenant, his family, friends or visitors; or the insurer pays the cost of re-housing the Tenant.
- 10.8.2. If the Premises are not made habitable within one month, either party to this Agreement may terminate this Agreement by giving immediate written notice to the other party.

10.9. Notices

- 10.9.1. The Landlord notifies the Tenant pursuant to Sections 47 and 48 of the Landlord and Tenant Act 1987 that the address which notices (including notices in proceedings) may be served upon the Landlord is C/O 1stavenue.co.uk Ltd, Unit 6, 128 Metcalfe Court, London, SE10 0EL.

10.9.2. The provisions as to the service of the notices in Section 196 of the Law of Property Act 1925 apply and any notices, or documents relating to the Deposit protection scheme used in this Agreement, or any other documents relating to this Agreement served on the Tenant shall be sufficiently served if sent by ordinary first class post to the Tenant at the Premises or the last known address of the Tenant or left addressed to the Tenant at the Premises. This clause shall apply to any notices or documents authorised or required to be served under this Agreement or under any Act of Parliament relating to the Tenancy.

10.9.3. Service shall be deemed valid if sent by email to the following email address provided by the Tenant at the start of the Tenancy and which the Tenant has confirmed as being their own:
oyerburyhodgson@gmail.com

The Tenant may also serve notice by email to the following email address which the Agent has confirmed as being their own: notice@1stavenue.co.uk

Both the Tenant and the Agent/Landlord confirm that there are no limitations to the recipient's agreement to accept service by such means as set out in clause 4.2 of the practice directions 6A of the civil procedure rules.

If the email is sent on a business day before 16:30 then it shall be deemed served that day; or in any other case, the next business day after the day it was sent.

10.9.4. At the end of the initial fixed Term as specified in clause 2 hereof, the Term shall continue on a month by month basis until either party shall serve on the other a written notice to bring the same to an end. Such notice shall, when served by the Landlord, should expire not less than two months after the same shall have been served on the Tenant. In the case of a notice served by the Tenant, such notice should expire no less than one month after service of the same on the Landlord.

10.10. Jurisdiction

10.10.1. This agreement will be subject to the jurisdiction of the court in England and Wales.

10.11 Documentation

10.11.1 The Tenant acknowledges receipt of the documents listed in the Guidance Notes for Tenants attached to this Agreement.

SPECIAL TERMS AND CONDITIONS

These clauses are negotiated between the Landlord or their Agent and the Tenant.

Break Clause:

Should either party wish to terminate the Tenancy, it is agreed that a minimum of 2 months advance written notice must be served on the other party and the tenancy must not expire within the first 14 months of the Tenancy commencement date. In this Lease the earliest date either party can give notice will be the 31st of October 2020 to expire 2 months' after service of that notice.

Additional clause(s):

- Any time after twelve months of the initial fixed term of this tenancy (or after a similar period following a fixed term extension to the original tenancy) either party may invoke this break clause by providing a minimum of two months written notice to the other (such notice to expire on the last day of a rental period of the tenancy). At the end of such notice the tenancy shall end and all obligations and responsibilities shall cease; subject nevertheless to any claim by either party against the other in respect of any breach of any of the terms and conditions of the agreement.
- The tenant agrees neither to keep any animals, birds or reptiles or rodents in or on the premises nor to allow his invited guests or visitors to do so. In breach of this clause to be responsible for the reasonable costs or rectification of any damage caused or for any appropriate de-infestation, cleaning, fumigation

etc., required.

- The tenant agrees neither to smoke in or on the premises nor to allow his invited guests or visitors to do so. In breach of this clause to be responsible for the reasonable costs or rectification of any damage caused or for any appropriate cleaning, fumigation etc., required.

- 1. To agree that all persons named as the Tenant or who resides at the Property as an occupier whether named in the Tenancy Agreement or not must provide a valid passport and visa or work permit to the Landlord or the Agent prior to taking occupation of the Property either before or during the Tenancy. To avoid doubt if any person forming the Tenant or the occupier fails to comply the Landlord may take any necessary legal action to have the person evicted from the Property.

- 2. If any person forming the Tenant or any occupier changes during the Tenancy all persons forming the Tenant agree to seek written consent from the Landlord or the Agent prior to any additional or new person taking occupation of the Property and to ensure that any new or additional persons forming the Tenant, the occupier or wishing to reside in the Property complies with the legal requirements of the "Right to Rent" prior to taking occupation by meeting the Landlord or the Agent personally to provide a valid passport to be checked and copied; and to provide a valid visa to work or study in the UK to be checked and copied.

- Initial Rent for the period from [01/11/2019] to [30/11/2019] £1325.00 :
Deposit £1528.85 A full explanation was included from the outset as to the nature and amount of such costs

TENANT FEES SCHEDULE

NEW ASSURED SHORTHOLD TENANCIES (ASTs) SIGNED ON OR AFTER 1 JUNE

Holding Deposit (per tenancy)	One week's rent. This is to reserve a property. Please Note: This will be withheld if any relevant person (including any guarantor(s)) withdraw from the tenancy, fail a Right-to-Rent check, provide materially significant false or misleading information, or fail to sign their tenancy agreement (and / or Deed of Guarantee) within 15 calendar days (or other Deadline for Agreement as mutually agreed in writing).
Security Deposit (per tenancy. Rent under £50,000 per year)	Five week's rent. This covers damages or defaults on the part of the tenant during the tenancy.
Security Deposit (per tenancy. Rent of £50,000 or over per year)	Six week's rent. This covers damages or defaults on the part of the tenant during the tenancy.
Unpaid Rent	Interest at 0.75% above the Bank of England Base Rate from Rent Due Date until paid in order to pursue non-payment of rent. Please Note: This will not be levied until the rent is more than 14 days in arrears.
Lost Key(s) or other Security Device(s)	Tenants are liable to the actual cost of replacing any lost key(s) or other security device(s). If the loss results in locks needing to be changed, the actual costs of a locksmith, new lock and replacement keys for the tenant, landlord any other persons requiring keys will be charged to the tenant.
Variation of Contract (Tenant's Request)	£50 (inc. VAT) per replacement tenant. To cover the costs associated with taking landlord's instructions, new tenant referencing and Right-to-Rent checks, deposit registration as well as the preparation and execution of new legal documents.
Early Termination (Tenant's Request)	Should the tenant wish to leave their contract early, they shall be liable to the landlord's costs in re-letting the property as well as all rent due under the tenancy until the start date of the replacement tenancy. These costs will be no more than the maximum amount of rent outstanding on the tenancy.

If you any questions on our fees, please ask a member of staff.

Signed by the Landlord's Agent:

Helen Recardo

Helen Recardo

2nd of November 2019

15:13:55 UTC

Signed by the Tenant(s):

**Oliver Mark Cristian Yerbury-
Hodgson**

Oliver YH

18th of September 2019

20:55:01 UTC

Oliver YH

Helen Recardo

TDS Prescribed Information for Assured Shorthold Tenancies

Under the Housing Act 2004, the Agent is required to give the following information to the Tenant and anyone who paid the Deposit on the Tenant's behalf (a Relevant Person) within 30 days of receiving the Deposit. This is to ensure that Tenants are made aware of their rights during and at the end of the tenancy regarding the Deposit. To: **Oliver Mark Cristian Yerbury-Hodgson**

- a. The scheme administrator of the Tenancy Deposit Scheme is:

The Dispute Service Limited

1 The Progression Centre
42 Mark Road
Hemel Hempstead
HP2 7DW

Phone 0300 037 1000

Email deposits@tenancydepositscheme.com

Web www.tenancydepositscheme.com

- b. A leaflet entitled What is the Tenancy Deposit Scheme?, which explains the operation of the provisions contained in sections 212 to 215 of, and Schedule 10 to, Housing Act 2004, must accompany this document when given to the Tenant and any relevant person.
- c. The procedures that apply under the scheme by which an amount in respect of a Deposit may be paid or repaid to the Tenant at the end of the tenancy are set out in the scheme leaflet: What is the Tenancy Deposit Scheme?, which accompanies this document.
- d. The procedures that apply under the scheme where either the Landlord or the Tenant is not contactable at the end of the tenancy are set out in the Scheme Leaflet: What is the Tenancy Deposit Scheme?
- e. The procedures that apply where the Landlord and the Tenant dispute the amount of the Deposit to be paid or repaid are summarised in the Scheme Leaflet What is the Tenancy Deposit Scheme? More detailed information is available on: www.tenancydepositscheme.com
- f. The facilities available under the scheme for enabling a dispute relating to the Deposit to be resolved without recourse to litigation are set out in the Scheme Leaflet: What is the Tenancy Deposit Scheme? More detailed information is available on: www.tenancydepositscheme.com
- i. **THE DEPOSIT**
The amount of the Deposit paid is **£1528.85**
- ii. **ADDRESS OF THE PROPERTY TO WHICH THE TENANCY RELATES**
2a Greenwich South Street, London, SE10 8TY
- iii. **DETAILS OF THE LANDLORD'S AGENT**
Name: 1stavenue.co.uk Ltd
Address: Unit 6, 128 Metcalfe Court, London, SE10 0EL
Phone: 02082938600
- iv. **DETAILS OF THE TENANT(S)**
Name: Oliver Mark Cristian Yerbury-Hodgson
Address: Flat 1A, Burnham Thorpe Court, 68-74 Nelson Street, London,

E1 2DY
Phone: 07910887587
Email: oyerburyhodgson@gmail.com
Post Tenancy Address: N/A
Post Tenancy Phone: 07910887587
Post Tenancy Email: oyerburyhodgson@gmail.com

v. RELEVANT PERSON'S CONTACT DETAILS

If there is a relevant person (i.e. anyone who has arranged to pay the Deposit on the Tenant's behalf) the details requested in (iv) must be provided for them, as part of the Prescribed Information.

For this Tenancy there is no Relevant Person

vi. CIRCUMSTANCES WHEN THE DEPOSIT MAY BE RETAINED BY THE LANDLORD

The circumstances when all or part of the Deposit may be retained by the Landlord(s) by reference to the terms of the tenancy are set out in clause(s) **(Please see clauses and/or sections relating to the Deposit)** of the tenancy agreement. No deduction can be paid from the Deposit until the parties to the tenancy agreement have agreed the deduction, or an award has been made by TDS or by the court.

vii. CONFIRMATION

The Agent certifies and confirms that:

- the information provided is accurate to the best of my/our knowledge and belief and
- I/we have given the Tenant the opportunity to sign this document by way of confirmation that the information is accurate to the best of the Tenant's knowledge and belief.

Signed by the Landlord's Agent:

Helen Recardo

Helen Recardo
.....
2nd of November 2019
15:13:55 UTC

The Tenant confirms that:

- I/we have been given the opportunity to read the information provided and
- I/we sign this document to confirm that the information is accurate to the best of my/our knowledge and belief.

Signed by the Tenant(s):

**Oliver Mark Cristian Yerbury-
Hodgson**

Oliver YH

**18th of September 2019
20:55:01 UTC**

Responsibility for serving complete and correct Prescribed Information on each Tenant and relevant person is the responsibility of the member and the Landlord. The Dispute Service Limited does not accept any liability for a member's or Landlord's failure to comply with The Housing Act 2004 and/or The Housing (Tenancy Deposits) (Prescribed Information) Order 2007.

Supporting Documents Checklist

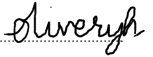
I confirm I have received the following documents:

- Department for Communities and Local Government How to Rent guide
 - Details of the scheme with which your Deposit will be registered including details as to how you will recover your Deposit on your departure
 - A check-list of the key deposit registration information generally described as "Prescribed Information"

These documents are attached to the emails that I have received from 1stavenue.co.uk Ltd in conjunction with this tenancy application.

Signed by the Tenant(s):

**Oliver Mark Cristian
Yerbury-Hodgson**



**18th of September 2019
20:55:01 UTC**

Appendix. Payment Schedule

Full Tenancy	
Rent on Signing	£1325.00
1 Dec 2019	£1325.00
1 Jan 2020	£1325.00
1 Feb 2020	£1325.00
1 Mar 2020	£1325.00
1 Apr 2020	£1325.00
1 May 2020	£1325.00
1 Jun 2020	£1325.00
1 Jul 2020	£1325.00
1 Aug 2020	£1325.00
1 Sep 2020	£1325.00
1 Oct 2020	£1325.00
1 Nov 2020	£1325.00
1 Dec 2020	£1325.00
1 Jan 2021	£1325.00
1 Feb 2021	£1325.00
1 Mar 2021	£1325.00
1 Apr 2021	£1325.00
1 May 2021	£1325.00
1 Jun 2021	£1325.00
1 Jul 2021	£1325.00
1 Aug 2021	£1325.00
1 Sep 2021	£1325.00
1 Oct 2021	£1325.00
Total	£ 31800.00

HOW TO...

RENT

The checklist for
renting in England



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Ways to rent a property	4	If you want to stay	8
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When you've found a place	6	Further sources of information	10
Check the paperwork	6		

This information is frequently updated.

Search on GOV.UK for **How to Rent** to ensure you have the latest version.

Landlords cannot use the section 21 (no fault) eviction procedure unless an up-to-date version of this guide has been provided to the tenant.

The online version contains links you can click on to get more information.

If you do not have internet access, ask your local library to help.

Assured shorthold tenancies

When you enter an [assured shorthold tenancy](#) – the most common type – you are entering into a contractual arrangement.

This gives you some important rights but also some responsibilities.

This guide will help you to understand what questions to ask, what your rights are, and what responsibilities you have.

This will help you create a positive relationship with your landlord, but will also tell you how to get help if things go wrong.

Take your time to read documents and contracts carefully. When you rent a home, people sometimes expect you to make a quick decision, or to sign documents before you've had time to think about them.

You shouldn't feel forced into a decision and it is important to understand the terms and conditions of any contract you are entering into.

Your landlord **must** provide you with a copy of this booklet, so **use the checklist and keep it safe** to protect yourself from problems at every stage.

Who is this guide for?



This guide is for people who are about to rent a house or flat on an [assured shorthold tenancy](#). Most of it will equally apply if you are in a shared property but in certain cases [your rights and responsibilities will vary](#).

The guide does not cover [lodgers](#) (people who live with their landlord) or people with [licences](#) – nor tenants where the property is not their main or only home.

Links



This guide is best viewed online as it contains hyperlinks.

If you are reading this on a computer or tablet, you can click on the links to go to other websites with more detailed information.

They are coloured and underlined [like this](#).

On Android or Windows devices, links work better if you download Acrobat Reader from get.adobe.com/uk/reader.

CONTRACT

Before you start

Renting from a landlord or a letting agent?

- ☐ **How long do you want the tenancy for?**
You can ask for a tenancy to be any length between six months and seven years. This has to be agreed with the landlord.
- ☐ **What can you afford?** Think about how much rent [you can afford to pay](#): 35% of your take-home pay is the most that many people can afford, but this depends on what your other outgoings are (for example, whether you have children).
- ☐ **If you are entitled to Housing Benefit or Universal Credit** you may get help with all or part of your rent. If you are renting from a private landlord you will receive up to the Local Housing Allowance (LHA) rate to cover or help with the cost of rent. Check with this [online calculator](#) to see if you can afford to live in the area you want. You should also look at this advice about [managing rent payments on Universal Credit](#).
- ☐ **Which area you would like to live in and how you are going to look for a rented home?** The larger the area where you are prepared to look, the better the chance of finding the right home for you.
- ☐ **Do you have your documents ready?** Landlords and agents will want to confirm your identity, [immigration status](#), credit history and possibly employment status.
- ☐ **Do you have the right to rent property in the UK?** Landlords must check that all people aged over 18 living in their property as their only or main home have the right to rent. They will need to make copies of [your documents](#) and return your original documents to you.
- ☐ **Will you need a rent guarantee?** Some landlords might ask someone to [guarantee your rent](#). If you don't have a guarantor, ask [Shelter](#) for help.

Ways to rent a property

Direct from the landlord	Through a letting agent
■ Look for landlords who belong to an accreditation scheme. Your local authority can advise you about accreditation schemes operating in your area. The National Landlords Association (NLA), the Residential Landlords Association (RLA) and the Guild of Residential Landlords run national schemes.	■ Find out what fees (and costs) you will be charged and when you need to pay them. By law, a breakdown of all fees should be clearly visible to you in the agent's office and on their website. The Government has committed to banning letting fees to tenants but this has not yet come into force. You should discuss the letting fees with your agent if you think that they are too high. ■ What independent redress scheme is the agent a member of? Are they a member of a client money protection scheme? By law, this information should also be clearly visible to you.
Watch out for scams! Be clear who you are handing money over to, and why.	■ Reputable agents are often accredited through a professional body like ARLA Propertymark, NALS, RICS or UKALA. Look for the SAFEagent sign too. ■ Landlords and property agents cannot unlawfully discriminate against a tenant or prospective tenant on the basis of their disability, sex, gender reassignment, pregnancy or maternity, race, religion or belief or sexual orientation.

Looking for your new home

Things to check

- ☐ **Deposit protection.** If the landlord asks for a deposit, check that it will be protected in a [government approved scheme](#). Some schemes hold the money, and some insure it.

You may be able to access a [bond or guarantee scheme](#) that will help you put the deposit together. Contact your local authority for advice.

Alternative products such as deposit replacement insurance also exist, but you need to fully understand the cover they provide before signing up. For example you will still be responsible for paying for any damage to the property at the end of the tenancy.
- ☐ **Length of the tenancy.** There is usually a fixed period of 6 or 12 months. If you want more security, you can ask for a longer fixed period.
- ☐ **Children, smoking and pets.** Check if there are any rules about them, as well as for other things such as keeping a bike, dealing with refuse and recycling.
- ☐ **Bills.** Check who is responsible for bills such as electricity, gas, water and council tax. You or the landlord? Usually the tenant pays for these. Advice on paying bills is available [here](#).
- ☐ **Fixtures and fittings.** Check you are happy with them, as it is unlikely that you will be able to get them changed once you have moved in.
- ☐ **Smoke alarms – and carbon monoxide detectors** if you have solid fuel appliances. Check these are provided. If not, your landlord must install them. They could save your life.
- ☐ **Safety.** Check that the property is safe to live in. Use the 'How to Rent a Safe Home' guide to help you identify possible hazards.
- ☐ **If the building becomes unfit to live in.** Check that the tenancy agreement excuses you from paying rent should the building become unfit to live in because of, for example, a fire or flood.

Check who your landlord is

- **They could be [subletting](#)** – renting you a property that they are renting from someone else. If they are subletting, check that the property owner has consented.

Find out who you should speak to if any repairs need doing.

- **Ask whether the property is [mortgaged](#).**

Landlords should let you know about this upfront, because you may be asked to leave the property if the landlord does not pay their mortgage payments.

Houses in Multiple Occupation (HMOs)

HMOs are usually properties in which **unrelated people share facilities** such as the kitchen or bathroom.

Some HMOs must be [licensed](#). Check that your landlord has the correct licence. Landlords of licensed HMOs / houses **must by law** give tenants a statement of the terms on which they live in the property.



When you've found a place

Check the paperwork

- ☐ **Tenancy Agreement.** Make sure you have a written tenancy agreement and read it carefully to understand your rights and responsibilities. The landlord or agent usually provides one but you can request to use a different version. The government has published a [model tenancy agreement](#) that can be used.

If you have any concerns about the agreement, seek [advice](#) before you sign.
- ☐ **Inventory.** Agree an inventory (or check-in report) with your landlord before you move in and, as an extra safeguard, make sure that you **take photos**. This will make things easier if there is a dispute about the deposit at the end of the tenancy. If you are happy with the inventory, sign it and keep a copy.
- ☐ **Meter Readings.** Remember to take meter readings when you move in. This will help make sure you don't pay for the previous tenant's bills.
- ☐ **Contact details.** Make sure that you have the correct contact details for the landlord or agent, including a telephone number you can use in case of an emergency. You are legally entitled to know the name and address of your landlord.
- ☐ **Code of practice.** Check whether whoever is managing the property is following a [code of practice](#).

The landlord must provide you with:

- **A copy of this guide** *How to rent: The checklist for renting in England* either as a hard copy or, if you agree, via email as a PDF attachment.
- **A gas safety certificate.** The landlord must provide one at the start of the tenancy and within 28 days of each annual gas safety check, if there is a gas installation.
- **Deposit paperwork.** If you have provided a deposit, the landlord must protect it in a government approved scheme within 30 days and provide you with prescribed information about it. Make sure you get the official information from your landlord, and that you understand how to get your money back at the end of the tenancy. Keep this information safe as you will need it later.
- **The Energy Performance Certificate.** This will affect your energy bills and the landlord must provide one (except for Houses in Multiple Occupation). Properties let on tenancies entered into after 1 April 2018 must have an [EPC rating of at least 'E'](#) (unless a valid exemption applies).

If your tenancy started or was renewed after 1 October 2015 your landlord cannot evict you with a Section 21 notice (no fault eviction) if they have not provided you with these documents. You can still be [evicted](#) with a Section 8 notice if you break the terms of your tenancy.

The landlord should also provide you with:

- **A record of any [electrical inspections](#).** All appliances must be safe and checks every 5 years are recommended.
- **Evidence that smoke alarms and any carbon monoxide alarms** are in working order at the start of the tenancy. Tenants should then regularly check they are working.

Living in your rented home

The tenant must...

- ☐ **Pay the rent on time.** If you don't, you could lose your home because you have broken your tenancy agreement. If you have problems, [GOV.UK](https://www.gov.uk) has links to further advice. Check out these [practical steps for paying your rent on time](#).
- ☐ **Pay any other bills** that you are responsible for on time, such as council tax, gas, electricity and water bills. If you pay the gas or electricity bills, you can [choose your own energy supplier](#).
- ☐ **Look after the property.** Get your landlord's permission before attempting repairs or decorating. It's worth getting contents insurance to cover your possessions too, because the landlord's insurance won't cover your things.
- ☐ **Be considerate to the neighbours.** You could be evicted for anti-social behaviour if you aren't.
- ☐ **Not take in a lodger** or sub-let without checking whether you need permission from your landlord.

And also you, the tenant, should...

- ☐ **Make sure you know how** to operate the boiler and other appliances and know where the stopcock, fuse box and any meters are located.
- ☐ **Regularly test** your smoke alarms and carbon monoxide detectors – at least once a month.
- ☐ **Report any need for repairs** to your landlord. There will be a risk to your deposit if a minor repair turns into a major problem because you did not [report it](#).
- ☐ **And don't forget to** [register to vote](#).

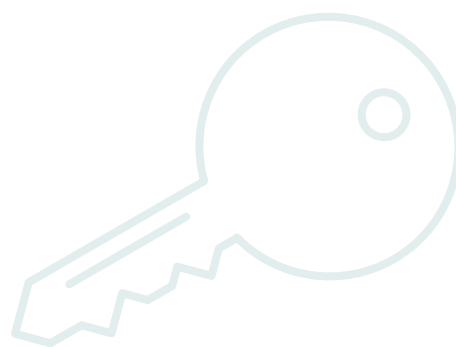


The landlord must...

- ☐ **Maintain the structure** and exterior of the property.
- ☐ **Fit smoke alarms** on every floor and [carbon monoxide alarms](#) in rooms with appliances using solid fuels – such as coal and wood – and make sure they are working at the start of your tenancy. If they are not there, ask your landlord to install them.
- ☐ **Deal with any problems** with the water, electricity and gas supply
- ☐ **Maintain** any appliances and furniture they have supplied.
- ☐ **Carry out most repairs.** If something is not working, [report it](#) to your landlord or agent as soon as you can.
- ☐ **Arrange an annual** [gas safety check](#) by a Gas Safe engineer (where there are any gas appliances).
- ☐ **Give at least 24 hours notice of visits** for things like repairs – the landlord cannot walk in whenever they like.
- ☐ **Get a licence for the property** if it is a [licensable property](#).
- ☐ **Ensure the property** is at [a minimum of EPC energy efficiency band E](#) (unless a valid exemption applies).

And also the landlord should...

- ☐ **Insure the building** to cover the costs of any damage from flood or fire.



At the end of the fixed period

If you want to stay

Should you wish to extend your tenancy after any initial fixed period, there are a number of important issues to consider. Check [Shelter's website](#) for advice.

- ☐ **Do you want to sign up to a new fixed term?** There may be costs for this, particularly if you rent through an agent. If not, you will be on a 'rolling periodic tenancy'. This means you carry on as before but with no fixed term – your tenancy agreement should say how much notice you must give the landlord if you want to leave the property – one month's notice is typical. Shelter publishes advice on how you can end your tenancy.
- ☐ **Your landlord might want to increase your rent.** Your landlord can increase your rent by agreement, or as set out in your tenancy agreement, or by following a [procedure set out in law](#).



If you or the landlord want to end the tenancy

There are things that both landlords and tenants must do at the end of the tenancy:

- ☐ **Giving notice.** It is a legal requirement for landlords to give you [proper notice](#) if they want you to leave. Normally, the landlord must allow any fixed period of the tenancy to have expired, and they must have given at least two months' notice.

Your tenancy agreement should say how much notice you must give the landlord if you want to leave the property – one month's notice is typical.
- ☐ **Return of deposit.** Try to be present when the property is inspected to check whether any of the tenancy deposit should be deducted to cover damage or cleaning costs (a 'check-out inventory'). If you do not agree with proposed deductions contact the relevant [deposit protection scheme](#).
- ☐ **Rent.** Make sure that your rent payments are up to date. Do not keep back rent because you think that it will be taken out of the deposit.
- ☐ **Bills.** Do not leave bills unpaid. This might have an impact on your references and credit rating.
- ☐ **Clear up.** Remove all your possessions, clean the house, take meter readings, return all the keys and give a forwarding address. Dispose of any unwanted furniture via a local collection service. The landlord is usually entitled to dispose of possessions left in the property after, typically, 14 days. The landlord must let you know, or try to let you know, that they intend to dispose of possessions you leave behind.

If things go wrong

There are often legal protections in place for the most common problems that you may experience during the tenancy – the following links will tell you what they are or where to look for help:

- ☐ **If you have a complaint about a letting agent's service** and they don't resolve your complaint, you can complain to an [independent redress scheme](#). Letting agents must be a member of a government approved redress scheme.
- ☐ **If you are having financial problems**, or are falling into rent arrears, speak to your landlord as they may be helpful, and are likely to be more sympathetic if you talk to them about any difficulties early on. Should you need further help contact your local housing authority, [Citizens Advice](#) or [Shelter](#) as soon as possible. Check out these [practical steps for managing your rent payments](#).
- ☐ **If the property is in an unsafe condition** and your landlord won't repair it – contact your [local authority](#). They have powers to make landlords deal with serious health and safety hazards.
- ☐ **If you have a serious complaint** about the property and your local authority has sent a notice to the landlord telling them to make repairs, your landlord [cannot evict you](#) with a Section 21 notice (no fault eviction) for six months after the council's notice. You can still be [evicted](#) with a Section 8 notice if you break the terms of your tenancy.
- ☐ **Failure to comply with a statutory notice is an offence**, local authorities may prosecute or fine the landlord up to £30,000.
- ☐ **Local authorities have powers to apply for [banning orders](#)** which prevent landlords or property agents letting out property if they are convicted of certain offences, including failure to comply with a formal notice issued by the local authority requiring safety improvements and making illegal evictions. If a landlord or property agent receives a banning order, they will be added to the [database of rogue landlords and property agents](#). Landlords or agents may also be added to the database if they are convicted of a banning order offence or receive two or more [civil penalties](#) within a 12 month period.
- ☐ **Unannounced visits and harassment** from your landlord – contact your [local authority](#), or if more urgent dial 999.
- ☐ **If you are being forced out illegally, [contact the police](#)** and your [local authority](#). If your landlord wants you to leave the property, they must notify you in writing, with the [right amount of notice](#) – you can only be legally removed from the property with a court order.



If you live with your partner and you separate, you may have [the right to carry on living in your home](#).

If you are concerned about finding another place to live, then contact the Housing Department of your [local authority](#) straight away.

Depending on your circumstances, they may have a legal duty to help you find accommodation and they can also provide advice.

Local authorities have legal duties to help people who are threatened with homelessness within 56 days or are actually homeless.

The local authority should not wait until you are evicted before taking action to help you.

If you are reading a print version of this guide and need more information on the links, please [contact us](#).

Further sources of information

Tenancy deposit protection schemes

Your landlord must put your deposit in a government-backed tenancy deposit scheme.

- [Deposit Protection Service](#)
- [MyDeposits](#)
- [Tenancy Deposit Scheme](#)

Letting agent redress schemes

Every letting agent must belong to a government-approved redress scheme.

- [The Property Ombudsman](#)
- [Ombudsman Services Property \(until 6 August 2018\)](#)
- [Property Redress Scheme](#)

Also in this series

- The Government's **'How to Rent a Safe Home' guide** helps current and prospective tenants ensure that a rented property is safe to live in.
- The Government's **'How to Let' guide** provides information for landlords and property agents about their rights and responsibilities when letting out property.
- The Government's **'How to Lease' guide** helps current and prospective leaseholders understand their rights and responsibilities.

Help and advice

- [Citizens Advice](#) – free, independent, confidential and impartial advice to everyone on their rights and responsibilities.
- [Shelter](#) – housing and homelessness charity who offer advice and support.
- [Crisis](#) – advice and support for people who are homeless or facing homelessness.
- [Your Local Housing Authority](#) – to make a complaint about your landlord or agent, or about the condition of your property.
- [Money Advice Service](#) – free and impartial money advice.
- [The Law Society](#) – to find a lawyer.
- [Gas Safe Register](#) – for help and advice on gas safety issues.
- [Electrical Safety First](#) – for help and advice on electrical safety issues.
- [Marks Out Of Tenancy](#) – information for current and prospective tenants.

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